

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LEROY PRESSLEY,

Plaintiff,

Index #:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, SGT.
BRYAN PIERRE, SGT. JOHN ROBERTS,
SGT. SHAUN MARA, P.O. PATRICK LAVIN,
P.O. KEITH GAMRAT and ADA JOHN QUIGLEY,

Defendants.

-----X
Plaintiff, LEROY PRESSLEY, by his attorneys, RUBERT & GROSS, P.C., complaining of Defendants, THE CITY OF NEW YORK ("CITY") SGT. BRYAN PIERRE, ("PIERRE"), DETECTIVE SHAUN MARA ("MARA"), DETECTIVE JOHN ROBERTS (ROBERTS), P.O. PATRICK LAVIN ("LAVIN"), P.O. KEITH GAMRAT (GAMRAT) and ADA JOHN QUIGLEY ("QUIGLEY") and alleges as follows:

1. At all times hereinafter mentioned, plaintiff, LEROY PRESSLEY (hereinafter "PRESSLEY"), was and still is a resident of the County of Queens, City and State of New York.
2. At all times hereinafter mentioned, defendant, CITY, was and still is a municipal corporation created, organized and duly existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, CITY, its agents, servants and/or employees operated, maintained, managed and controlled the New York City Police Department including all police officers thereof.

4. At all times hereinafter mentioned, the New York City Police Department is an agency, instrumentality, department of defendant, CITY, and/or defendant, CITY, derived benefits from the activities of the New York City Police Department.

5. At all times hereinafter mentioned, defendant, PIERRE, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

6. Defendant, PIERRE, is sued individually and in his official capacity.

7. At all times hereinafter mentioned, defendant, PIERRE, was acting within the scope of his employment as a police officer with the New York City Police Department.

8. At all times hereinafter mentioned, defendant, PIERRE, was acting under color of law and authority as a police officer with the New York City Police Department.

9. At all times hereinafter mentioned, defendant, ROBERTS, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

10. Defendant, ROBERTS, is sued individually and in his official capacity.

11. At all times hereinafter mentioned, defendant, ROBERTS, was acting within the scope of his employment as a police officer with the New York City Police Department.

12. At all times hereinafter mentioned, defendant, ROBERTS, was acting under color of law and authority as a police officer with the New York City Police Department.

13. At all times hereinafter mentioned, defendant, MARA, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

14. Defendant, MARA, is sued individually and in his official capacity.

15. At all times hereinafter mentioned, defendant, MARA, was acting within the scope of his employment as a police officer with the New York City Police Department.

16. At all times hereinafter mentioned, defendant, MARA, was acting under color of law and authority as a police officer with the New York City Police Department.

17. At all times hereinafter mentioned defendant, LAVIN, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

18. Defendant, LAVIN, is sued individually and in his official capacity.

19. At all times hereinafter mentioned defendant, P.O. LAVIN, was acting within the scope of their employment as a police officer employed with the New York City Police Department.

20. At all times hereinafter mentioned defendant, LAVIN, was acting under color of law and authority as a police officer with the New York City Police Department.

21. At all times hereinafter mentioned, defendant, GAMRAT, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

22. Defendant, GAMRAT, is sued individually and in his official capacity.

23. At all times hereinafter mentioned, defendant, GAMRAT, was acting within the scope of his employment as a police officer with the New York City Police Department.

24. At all times hereinafter mentioned, defendant, GAMRAT, was acting under color of law and authority as a police officer with the New York City Police Department.

25. At all times hereinafter mentioned, defendant, QUIGLEY, was an Assistant District Attorney in the Queens County District Attorney's Office.

26. Defendant, QUIGLEY, is sued individually and in his official capacity.

27. At all times hereinafter mentioned, defendant, QUIGLEY, was acting within the scope of his employment as an Assistant District Attorney in the office of the Queens County District Attorney.

28. At all times hereinafter mentioned, defendant, QUIGLEY, was acting under color of law and authority as an Assistant District Attorney.

29. In addition to acting in his prosecutorial capacity, defendant, QUIGLEY, also acted in an investigatory capacity in connection with plaintiff's arrest and prosecution.

30. On July 29, 2015, plaintiff, LEROY PRESSLEY, timely served a Notice of Claim upon defendants in the manner and mode required by law.

31. On November 18, 2015, plaintiff filed a Notice of Petition to file an Amended Notice of Claim, *nunc pro tunc*, to name defendant, PIERRE, as the arresting officer and amend the site of arrest, as it was incorrectly listed on the timely filed Notice of Claim.

32. On December 10, 2015, the Hon. Kevin Kerrigan granted plaintiff's petition to file a late notice of claim *nun pro tunc* in its entirety. On December 14, 2015, plaintiff filed his Amended Notice of Claim.

33. More than sixty days (60) have elapsed since the service of plaintiff's Notice of Claim and plaintiff's claims have not been adjusted or paid.

34. This action is brought within one (1) year and ninety (90) days from the date of occurrence complained of herein.

35. Plaintiff has complied with all conditions precedent applicable to the instant action.

36. This action falls within one or more of the exceptions of CPLR § 1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION
(False Arrest)

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “36” above as if fully set forth herein.

38. On April 22, 2013 plaintiff, PRESSLEY, lived at 67-16 Parsons Boulevard, Apt. 5D, Flushing, NY 11365, in the County of Queens, City and State of New York.

39. On April 22, 2013, while plaintiff was rightfully in his home, located at 67-16 Parsons Boulevard, Apt. 5D, Flushing, NY 11365, police officers from the 105th and 107th precincts entered the premises without a warrant and without consent.

40. On April 22, 2013, while plaintiff was rightfully in his home, located at 67-16 Parsons Boulevard, Apt. 5D, Flushing, NY 11365, defendant, PIERRE, entered the premises without a warrant.

41. On April 22, 2013, while plaintiff was rightfully in his home, located at 67-16 Parsons Boulevard, Apt. 5D, Flushing, NY 11365, defendant, ROBERTS, entered the premises without a warrant.

42. On April 22, 2013, while plaintiff was rightfully in his home, located at 67-16 Parsons Boulevard, Apt. 5D, Flushing, NY 11365, defendant, MARA, entered the premises without a warrant.

43. On April 22, 2013, while plaintiff was rightfully in his home, located at 67-16

Parsons Boulevard, Apt. 5D, Flushing, NY 11365, defendants, LAVIN, entered the premises without a warrant.

44. On April 22, 2013, while plaintiff was rightfully in his home, located at 67-16 Parsons Boulevard, Apt. 5D, Flushing, NY 11365, defendants, GAMRAT, entered the premises without a warrant.

45. On April 22, 2013, defendant, CITY, through its police officers, including, searched and ransacked plaintiff's car without a warrant and without consent.

46. On April 22, 2013, defendant, PIERRE, searched and ransacked plaintiff's car without a warrant and without consent.

47. On April 22, 2013, defendant, ROBERTS, searched and ransacked plaintiff's car without a warrant and without consent.

48. On April 22, 2013, defendant, MARA, searched and ransacked plaintiff's car without a warrant and without consent.

49. On April 22, 2013, defendants, LAVIN, searched and ransacked plaintiff's car without a warrant and without consent.

50. On April 22, 2013, defendant, GAMRAT, searched and ransacked plaintiff's car without a warrant and without consent.

51. On April 22, 2013, defendant, CITY, through its police officers, entered plaintiff's bedroom without a warrant and without consent.

52. On April 22, 2013, defendant, PIERRE, entered plaintiff's bedroom without a warrant and without consent.

53. On April 22, 2013, defendant, ROBERTS, entered plaintiff's bedroom without a warrant and without consent.

54. On April 22, 2013, defendant, MARA, entered plaintiff's bedroom without a warrant and without consent.

55. On April 22, 2013, defendant, LAVIN, entered plaintiff's bedroom without a warrant and without consent.

56. On April 22, 2013, defendant, GAMRAT entered plaintiff's bedroom without a warrant and without consent.

57. On April 22, 2013, defendant, PIERRE, searched plaintiff's apartment without a warrant.

58. On April 22, 2013, defendant, ROBERTS, searched plaintiff's apartment without a warrant.

59. On April 22, 2013, defendant, MARA, searched plaintiff's apartment without a warrant.

60. On April 22, 2013, defendant, LAVIN, searched plaintiff's apartment without a warrant.

61. On April 22, 2013, defendant, GAMRAT, searched plaintiff's apartment without a warrant.

62. At the time police officers entered plaintiff's home, there were no exigent circumstances present that would justify entry into the home without a warrant.

63. On April 22, 2013, plaintiff was wrongfully arrested by members of the NYPD from the 105th and 107th precincts for a shooting that occurred in the early morning hours of that day at 145-45 223rd Street, Queens, New York.

64. On April 22, 2013, defendant, PIERRE, wrongfully arrested plaintiff for a shooting that occurred in the early morning hours of that day at 145-45 223rd Street, Queens, New York.

65. On April 22, 2013, defendant, ROBERTS, wrongfully arrested plaintiff for a shooting that occurred in the early morning hours of that day at 145-45 223rd Street, Queens, New York.

66. On April 22, 2013, defendant MARA, wrongfully arrested plaintiff for a shooting that occurred in the early morning hours of that day at 145-45 223rd Street, Queens, New York.

67. On April 22, 2013, defendant, LAVIN, wrongfully arrested plaintiff for a shooting that occurred in the early morning hours of that day at 145-45 223rd Street, Queens, New York.

68. On April 22, 2013, defendant GAMRAT, wrongfully arrested plaintiff for a shooting that occurred in the early morning hours of that day at 145-45 223rd Street, Queens, New York.

69. Plaintiff was not read his Miranda rights prior to his arrest.

70. Plaintiff was not read his Miranda rights during his arrest.

71. Plaintiff was not read his Miranda rights after his arrest.

72. Plaintiff was not present at 145-45 223rd Street on April 22, 2013.

73. Plaintiff was not present at 145-45 223rd Street at the time a shooting occurred.

74. Defendant, QUIGLEY, authorized plaintiff's arrest.

75. After being arrested at his home without a warrant, plaintiff was taken to the 105th

Precinct located at 92-08 222nd Street, Queens Village, NY 11428.

76. While in the 105th Precinct, plaintiff was placed in an identification line-up.

77. The aforementioned line-up was conducted by defendant, PIERRE.

78. The aforementioned line-up was supervised by defendant, MARA.

79. Defendant, ROBERTS, participated in the aforementioned line-up.

80. Defendant, LAVIN, participated in the aforementioned line-up.

81. Defendant, GAMRAT, participated in the aforementioned line-up.

82. Defendant, QUIGLEY, participated in the aforementioned line-up.

83. The line-up to which plaintiff was subjected was unconstitutional and unduly suggestive.

84. The members of the line-up were told by the police that they could take whatever seats they wanted.

85. After the members of the line-up were seated, defendant, PIERRE, came into the room, looked around and went outside room.

86. After PIERRE left the room, the members of the lineup wanted to switch seats but PIERRE came into the room and said that they could no longer change seats despite having initially been told they could sit wherever they wished.

87. During the lineup, defendant, CITY, through its police officer, improperly suggested to the witness viewing the line-up to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

88. During the lineup, defendant, PIERRE, improperly suggested to the witness viewing the lineup to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

89. During the line-up, defendant, MARA, improperly suggested to the witness viewing the line-up to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

90. During the line-up, defendant, ROBERTS, improperly suggested to the witness viewing the line-up to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

91. During the line-up, defendant, LAVIN, improperly suggested to the witness viewing the line-up to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

92. During the lineup, defendant, GAMRAT, improperly suggested to the witness viewing the lineup to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

93. During the lineup, defendant, QUIGLEY, improperly suggested to the witness viewing the lineup to identify plaintiff as the person who did the shooting during the early morning hours of April 22, 2013.

94. Defendant, CITY, through its police officer, manipulated the line-up identification procedure to ensure that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 by having the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified

95. Defendant, PIERRE, manipulated the line-up identification procedure to ensure that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 by, among other things, having the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified.

96. Defendant, MARA, manipulated the line-up identification procedure to ensure that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 by, among other things, having the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified.

97. Defendant, ROBERTS, manipulated the line-up identification procedure to ensure that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 By, among other things, having the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified.

98. Defendant, LAVIN, manipulated the line-up identification procedure to ensure that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 by having, among other things, the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified.

99. Defendant, GAMRAT, manipulated the line-up identification procedure to ensure

that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 By, among other things, having the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified.

100. Defendant, QUIGLEY, manipulated the line-up identification procedure to ensure that plaintiff would be identified as the person who did the shooting during the early morning hours of April 22, 2013 By, among other things, having the witness specifically point to plaintiff and otherwise improperly suggesting to the witness who should be identified.

101. Plaintiff was wrongfully and falsely arrested, photographed and fingerprinted by police officers employed by the New York City Police Department, including, but not limited to PIERRE, MARA, ROBERTS, LAVIN and GAMRAT.

102. From the 105th Precinct, plaintiff was taken to Central Booking.

103. On or about April 23, 2013, plaintiff was arraigned and was held on bail of \$750,000.00.

104. Thereafter, plaintiff was confined to Rikers Island where he remained continuously in custody until April 30, 2015 when all charges against him were dismissed and he was released from custody.

105. At the time of the unlawful detention and imprisonment, plaintiff had not committed any illegal act.

106. At the time of the unlawful detention and imprisonment, plaintiff had not committed or attempted to commit any crime.

107. At the time of plaintiff's unlawful arrest and imprisonment, defendants knew or

should have known through the exercise of proper police procedure and reasonable investigation, that the aforementioned detention and imprisonment were false and without justification.

108. The aforesaid arrest was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification.

109. At the time a purported witness identified plaintiff as the person who committed the shooting, defendant, CITY, through its police officer, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability the witness existed.

110. At the time a purported witness allegedly identified plaintiff as the person who committed the shooting, defendant, PIERRE, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability of the witness existed.

111. At the time a purported witness allegedly identified plaintiff as the person who committed the shooting, defendant, ROBERTS, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability of the witness existed.

112. At the time a purported witness allegedly identified plaintiff as the person who committed the shooting, defendant, MARA, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability of the witness existed.

113. At the time a purported witness allegedly identified plaintiff as the person who

committed the shooting, defendant, LAVIN, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability of the witness existed.

114. At the time a purported witness allegedly identified plaintiff as the person who committed the shooting, defendant, GAMRAT, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability of the witness existed.

115. At the time a purported witness allegedly identified plaintiff as the person who committed the shooting, defendant, QUIGLEY, knew or should have known that materially impeaching circumstances or grounds for questioning the credibility or reliability of the witness existed.

116. As a result of the foregoing false arrest and imprisonment, plaintiff was caused to suffer personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

117. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION
(Assault and Battery)

118. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "117" above as if fully set forth herein.

119. On April 22, 2013, members of the New York City Police Department assaulted and battered plaintiff.

120. On April 22, 2013, defendant, PIERRE, assaulted and battered plaintiff.
121. On April 22, 2013, defendant, ROBERTS, assaulted and battered plaintiff.
122. On April 22, 2013, defendant, MARA, assaulted and battered plaintiff.
123. On April 22, 2013, defendant, LAVIN, assaulted and battered plaintiff.
124. On April 22, 2013, defendant, GAMRAT, assaulted and battered plaintiff.
125. As a result of the foregoing assault and battery, plaintiff was caused to suffer personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
126. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION
(Malicious Prosecution)

127. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “126” above as if fully set forth herein.

128. On April 23, 2013, defendant, PIERRE, signed a criminal complaint accusing, plaintiff of attempted murder in the second degree; assault in the first degree; criminal possession of a weapon in the second degree; aggravated criminal possession of a weapon and criminal possession of a firearm inside 145-45 223rd Street, Queens New York sometime between the hours of 4:05 and 4:10 a.m.

129. Following plaintiff’s arrest on April 22, 2013, defendant, CITY, its agents, servants and/or employees intentionally, knowingly, recklessly, grossly negligently and with

malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

130. Following plaintiff's arrest on April 22, 2013, defendant, PIERRE, intentionally, knowingly, recklessly, grossly negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

131. Following plaintiff's arrest on April 22, 2013, defendant, ROBERTS, intentionally, knowingly, recklessly, grossly negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

132. Following plaintiff's arrest on April 22, 2013, defendant, MARA, intentionally, knowingly, recklessly, grossly negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

133. Following plaintiff's arrest on April 22, 2013, defendant, LAVIN, intentionally, knowingly, recklessly, grossly negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

134. Following plaintiff's arrest on April 22, 2013, defendant, GAMRAT, intentionally, knowingly, recklessly, grossly negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

135. Subsequent to plaintiff's arrest, defendant, CITY, through its agents, servants and/or employees, did give false information and/or testimony in connection with plaintiff's criminal prosecution.

136. That subsequent to plaintiff's arrest, defendant, PIERRE, did give false information and/or testimony in connection with plaintiff's criminal prosecution.

137. That subsequent to plaintiff's arrest, defendant, MARA, did give false information and/or testimony with respect to plaintiff's criminal prosecution.

138. That subsequent to plaintiff's arrest, defendant, ROBERTS, did give false information and/or testimony with respect to plaintiff's criminal prosecution.

139. That subsequent to plaintiff's arrest, defendant, LAVIN, did give false information and/or testimony with respect to plaintiff's criminal prosecution.

140. That subsequent to plaintiff's arrest, defendant, GAMRAT, did give false information and/or testimony with respect to plaintiff's criminal prosecution.

141. That defendant, CITY, though its agents, servants and/or employees failed to make a complete and full statement of facts either to the Grand Jury or to the District Attorney.

142. That defendant, PIERRE, failed to make a complete and full statement of facts either to the Grand Jury or to the District Attorney.

143. Defendant, ROBERTS, failed to make a complete and full statement of facts either to the Grand Jury or to the District Attorney.

144. Defendant, LAVIN, failed to make a complete and full statement of facts either to the Grand Jury or to the District Attorney.

145. Defendant, GAMRAT, failed to make a complete and full statement of facts either to the Grand Jury or to the District Attorney.

146. Defendant, CITY, though its agents, servants and/or employees suppressed

evidence in order to prosecute plaintiff for a crime he had not committed.

147. Defendant, PIERRE, suppressed evidence in order to prosecute plaintiff for a crime he had not committed.

148. Defendant, PIERRE, failed to advise the District Attorney that he had entered plaintiff's home without a warrant and without consent.

149. Defendant, PIERRE, failed to advise the District Attorney that he had searched plaintiff's home without a warrant and without consent.

150. Defendant, PIERRE, did not advise the District Attorney's Office that he had searched plaintiff's bedroom without a warrant and without consent.

151. Defendant, PIERRE, did not advise the District Attorney's Office that he had recovered evidence from plaintiff's apartment without a warrant and without consent.

152. Defendant, PIERRE, did not advise the District Attorney's Office that defendant claimed that plaintiff had admitted to him that the car keys seized in the apartment belonged to him.

153. Defendant, PIERRE, affirmatively denied that he recovered evidence from plaintiff's bedroom when he knew full well that he had done so without a warrant.

154. Defendant, MARA, suppressed evidence in order to prosecute plaintiff for a crime he had not committed.

155. Defendant, ROBERTS, suppressed evidence in order to prosecute plaintiff for a crime he had not committed.

156. Defendant, LAVIN, suppressed evidence in order to prosecute plaintiff for a

crime he had not committed.

157. Defendant, GAMRAT, suppressed evidence in order to prosecute plaintiff for a crime he had not committed.

158. Defendant, ROBERTS, did not advise the District Attorney's Office that he had searched plaintiff's bedroom without a warrant and without consent.

159. Defendant, MARA, did not advise the District Attorney's Office that he had searched plaintiff's bedroom without a warrant and without consent.

160. Defendant, LAVIN, did not advise the District Attorney's Office that he had searched plaintiff's bedroom without a warrant and without consent.

161. Defendant, GAMRAT, did not advise the District Attorney's Office that he had searched plaintiff's bedroom without a warrant and without consent.

162. Defendant, ROBERTS, did not advise the District Attorney's Office that he had recovered keys from defendants' bedroom without a warrant and without consent.

163. Defendant, MARA, did not advise the District Attorney's Office that he had recovered keys from defendants' bedroom without a warrant and without consent.

164. Defendant, LAVIN, did not advise the District Attorney's Office that he had recovered keys from defendants' bedroom without a warrant and without consent.

165. Defendant, GAMRAT, did not advise the District Attorney's Office that he had recovered keys from defendants' bedroom without a warrant and without consent.

166. Defendant, CITY, willfully and maliciously hid crucial evidence from the District Attorney, the Grand Jury, the Court and the trial jury.

167. Defendant, PIERRE, willfully and maliciously hid crucial evidence from the District Attorney, the Grand Jury, the Court and the trial jury.

168. Defendant, ROBERTS, willfully and maliciously hid crucial evidence from the District Attorney, the Grand Jury, the Court and the trial jury.

169. Defendant, MARA, willfully and maliciously hid crucial evidence from the District Attorney, the Grand Jury, the Court and the trial jury.

170. Defendant, LAVIN, willfully and maliciously hid crucial evidence from the District Attorney, the Grand Jury, the Court and the trial jury.

171. Defendant, GAMRAT, willfully and maliciously hid crucial evidence from the District Attorney, the Grand Jury, the Court and the trial jury.

172. Defendant, CITY, though its agents, servants and/or employees fraudulently created, submitted and/or presented evidence in order to frame plaintiff for a crime he had not committed.

173. Defendant, PIERRE, fraudulently created, submitted and/or presented evidence in order to frame plaintiff for a crime he had not committed.

174. Defendant, MARA, fraudulently created, submitted and/or presented evidence in order to frame plaintiff for a crime he had not committed.

175. Defendant, ROBERTS, fraudulently created, submitted and/or presented evidence in order to frame plaintiff for a crime he had not committed.

176. Defendant, LAVIN, fraudulently created, submitted and/or presented evidence in order to frame plaintiff for a crime he had not committed.

177. Defendant, GAMRAT, fraudulently created, submitted and/or presented evidence in order to frame plaintiff for a crime he had not committed.

178. Defendant, CITY, through its police officers, failed to make further inquiry with respect to the reliability of the information they received when a reasonable person would have done so.

179. Defendant, PIERRE, failed to make further inquiry respect to the reliability of the information he received when a reasonable person would have done so.

180. Defendant, MARA, failed to make further inquiry respect to the reliability of the information he received when a reasonable person would have done so.

181. Defendant, ROBERTS, failed to make further inquiry respect to the reliability of the information he received when a reasonable person would have done so.

182. Defendant, LAVIN, failed to make further inquiry respect to the reliability of the information they received when reasonable people would have done so.

183. Defendant, GAMRAT, failed to make further inquiry respect to the reliability of the information he received when a reasonable person would have done so.

184. Defendant, CITY's conduct, through its police officers, deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures and plaintiff's rights.

185. Defendant, PIERRE's conduct deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures and plaintiff's rights.

186. Defendant, MARA's conduct deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures and plaintiff's rights.

187. Defendant, ROBERTS', conduct deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures and plaintiff's rights.

188. Defendant, LAVIN's, conduct deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures and plaintiff's rights.

189. Defendant, GAMRAT's, conduct deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures and plaintiff's rights.

190. In commencing and continuing said malicious prosecution, defendant, CITY, its agents, servants and/or employees, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

191. In commencing and continuing said malicious prosecution, defendant, PIERRE, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

192. In commencing and continuing said malicious prosecution, defendant, MARA, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

193. In commencing and continuing said malicious prosecution, defendant, ROBERTS, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

194. In commencing and continuing said malicious prosecution, defendant, LAVIN, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

195. In commencing and continuing said malicious prosecution, defendant, GAMRAT, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

196. Defendant, CITY, through its agents, servants and/or employees, fabricated evidence in order to indict and attempt to convict plaintiff of a crime he had not committed.

197. Defendant, PIERRE, fabricated evidence in order to indict prosecute and attempt to convict plaintiff of a crime he had not committed.

198. Defendant, MARA, fabricated evidence in order to indict, prosecute and attempt to convict plaintiff of a crime he had not committed.

199. Defendant, ROBERTS, fabricated evidence in order to indict, prosecute and attempt convict plaintiff of a crime he had not committed.

200. Defendant, LAVIN, fabricated evidence in order to indict, prosecute and attempt to convict plaintiff of a crime he had not committed.

201. Defendant, GAMRAT, fabricated evidence in order to indict, prosecute and attempt to convict plaintiff of a crime he had not committed.

202. Defendant, PIERRE, assembled a photo array that was unduly suggestive for the purpose of ensuring that plaintiff would be wrongly identified as the purported perpetrator.

203. Defendant, MARA, assembled a photo array that was unduly suggestive for the purpose of ensuring that plaintiff was wrongfully identified as the purported perpetrator.

204. Defendant, ROBERTS, assembled a photo array that was unduly suggestive for the purpose of ensuring that plaintiff was wrongfully identified as the purported perpetrator.

205. Defendant, LAVIN, assembled a photo array that was unduly suggestive for the purpose of ensuring that plaintiff was wrongfully identified as the purported perpetrator.

206. Defendant, GAMRAT, assembled a photo array that was unduly suggestive for the purpose of ensuring that plaintiff was wrongfully identified as the purported perpetrator.

207. Defendant, CITY, through its agents, servants and/or employees did not have the person who allegedly witnessed the shooting look through a computer mug shot database prior to being shown a photo array in order to identify the real culprit.

208. Defendant, PIERRE, did not have the person who allegedly witnessed the shooting look through the computer mug shot database prior to being shown a photo array in order to identify the real culprit.

209. Defendant, MARA, did not have the person who allegedly witnessed the shooting look through the computer mug shot database prior to being shown a photo array in order to identify the real culprit.

210. Defendant, ROBERTS, did not have the person who allegedly witnessed the shooting look through the computer mug shot database prior to being shown a photo array in order

to identify the real culprit.

211. Defendant, LAVIN, did not have the person who allegedly witnessed the shooting look through the computer mug shot database prior to being shown a photo array in order to identify the real culprit.

212. Defendant, GAMRAT, did not have the person who allegedly witnessed the shooting look through the computer mug shot database prior to being shown a photo array in order to identify the real culprit.

213. Any purported identification of plaintiff as the perpetrator at the line-up was tainted by the unduly suggestive nature of the photo array and the line-up.

214. The circumstances and details of the alleged identification of plaintiff as the perpetrator of the shooting would have led a reasonable police officer or detective to call into doubt the witness's veracity and ability to identify the perpetrator.

215. In the face of an unreliable identification of plaintiff as the perpetrator, defendant, PIERRE, should have conducted further inquiry and investigation of the crime in an attempted to corroborate the highly unreliable identification.

216. In the face of obviously unreliable identification of plaintiff as the perpetrator, defendant, MARA, should have conducted further inquiry and investigation of the crime in an attempted to corroborate the highly unreliable identification.

217. In the face of obviously unreliable identification of plaintiff as the perpetrator, defendant, ROBERTS, should have conducted further inquiry and investigation of the crime in an attempted to corroborate the highly unreliable identification.

218. In the face of an unreliable identification of plaintiff as the perpetrator, defendant, LAVIN, should have conducted further inquiry and investigation of the crime in an attempted to corroborate the highly unreliable identification.

219. In the face of an unreliable identification of plaintiff as the perpetrator, defendant, GAMRAT, should have conducted further inquiry and investigation of the crime in an attempted to corroborate the highly unreliable identification.

220. Plaintiff had not committed or attempted to commit any illegal acts.

221. Plaintiff had not given defendants probable cause to believe that he had committed the illegal acts of which he was accused.

222. Plaintiff had not given defendants probable cause to believe that he had attempted to commit the illegal acts of which he was accused.

223. Defendants knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

224. Defendant, CITY, through its agents, servants and/or employees, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

225. Defendant, PIERRE, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

226. Defendant, MARA, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

227. Defendant, LAVIN, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

228. Defendant, GAMRAT, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

229. Defendant, CITY, commenced a prosecution against plaintiff with malice.

230. Defendant, PIERRE, commenced a prosecution against plaintiff with malice.

231. Defendant, MARA, commenced a prosecution against plaintiff with malice.

232. Defendant, ROBERTS, commenced a prosecution against plaintiff with malice.

233. Defendant, LAVIN, commenced a prosecution against plaintiff with malice.

234. Defendant, GAMRAT, commenced a prosecution against plaintiff with malice.

235. All criminal charges against plaintiff were dismissed on April 30, 2015.

236. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer, substantial damages.

237. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

238. By reason of the foregoing, plaintiff demands judgment against defendants in

a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision against the City of New York)

239. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “238” above as if fully set forth herein.

240. Defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including, but not limited to the police officers sued herein.

241. Defendant, CITY, negligently supervised or failed to supervise its agents, servants and/or employees, including but not limited to police officers sued herein.

242. Defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, including, but not limited to the police officers sued herein.

243. Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, including, but not limited to the police officers sued herein, who the CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions.

244. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including, but not limited to the police officers sued herein. who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position in that they refused or failed to perform within the statutory and constitutional limits of his authority and misused and abused their positions.

245. As a result of the negligence of defendant, CITY, plaintiff was caused to suffer

personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

246. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION
(Conspiracy under 42 U.S.C. § 1983 against all Defendants)

247. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “246” above as if fully set forth herein.

248. That defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY, acting under color of law, conspired with each other as well as with others to reach a mutual understanding and thereafter acted to undertake a course of conduct to injure and deprive plaintiff of free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution of the United States, including the rights: to be free from false arrest and false imprisonment; to be free from malicious prosecution; to have fair and equal access to and seek redress in the courts; and to have fair and equal access to exculpatory evidence so as to be able to properly present a defense in a criminal matter; to have a fair trial and to have due process of law.

249. That defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY, acting under color of law, were willful participants in a joint action the purpose of which was to convict plaintiff of a crime they knew or in the exercise of reasonable care should have known plaintiff had not committed.

250. Defendant, PIERRE, acting under color of law, conspired with ADA MICHAEL BROVNER to hide, suppress and otherwise not divulge to the Grand Jury, plaintiff and the Court the fact that PIERRE had illegally obtained evidence from plaintiff's home without a warrant and without consent.

251. Defendant, PIERRE, acting under color of law, conspired with ADA KIRK SENDLEIN to hide, suppress and otherwise not divulge the Grand Jury, plaintiff and the Court fact that PIERRE had illegally obtained evidence from plaintiff's home without a warrant and without consent.

252. Defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY agreed and conspired to suggest and/or pressure a witness into identifying plaintiff as the person who committed the shooting despite knowing that plaintiff was innocent.

253. That defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY intentionally and in agreement, manipulated the photo array so as to ensure that the witness would identify plaintiff as the perpetrator.

254. That defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY intentionally and in agreement manipulated the line-up so as to ensure that the witness would identify plaintiff as the perpetrator.

255. That as part of the conspiracy among defendants and others, and in furtherance of said conspiracy, defendants willfully, recklessly and grossly negligently accused plaintiff of committing a criminal act without probable cause; falsely arrested and imprisoned plaintiff; forced plaintiff to take part in an unconstitutional line-up; maliciously prosecuted plaintiff; covered up wrong doing by defendants, their agents, servants and/or employees, including but

not limited to the deliberate, willful, malicious and/or negligent alteration, loss and/or destruction of exculpatory evidence, the failure to present exculpatory evidence, misrepresentation of evidence; suppression of exculpatory evidence; and by submitting false police reports, statements and/or testimony to support and corroborate the false charges against plaintiff.

256. As a result of the aforesaid conspiracy, plaintiff was caused to suffer personal injuries, violation of civil and constitutional rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within his community.

257. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION
(42 U.S.C. § 1983 based on *Brady* Violations)

258. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “257” above as if fully set forth herein.

259. Defendant, PIERRE, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff’s substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.

260. Defendant, PIERRE, acting under color of law, suppressed evidence that he had illegally searched plaintiff’s home in violation of his constitutional rights.

261. Defendant, PIERRE, acting under color of law, suppressed evidence of statements

allegedly made by plaintiff to him.

262. Defendant, PIERRE, failed to divulge the aforementioned information in order to avoid having the illegally obtained evidence suppressed.

263. Defendant, PIERRE, failed to divulge the aforementioned information in order to ensure plaintiff's conviction despite the fact that evidence against him was obtained illegally.

264. Defendant, MARA, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.

265. Defendant, ROBERTS, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.

266. Defendant, LAVIN, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.

267. Defendant, GAMRAT, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.

268. Said suppression and failure to disclose was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, and was done without lawful justification or reason, and was designed to and did cause specific and serious pain and suffering in violation of plaintiff's constitutional rights and guaranteed under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution

269. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of liberty, a loss of enjoyment of life, and suffered economic loss and other damages.

270. Defendants are sued in their individual and official capacities.

271. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

SEVENTH CAUSE OF ACTION
(Unreasonably Prolonged Detention under 42 U.S.C. § 1983 against all Defendants)

272. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "271" above as if fully set forth herein.

273. Defendants' above-described conduct, including but not limited to defendants' mishandling of exculpatory and/or impeaching evidence and their concealment, suppression, and/or failure to turn said evidence over to the defense, engaged in under color of state law, violated rights, privileges and immunities secured to plaintiff by the Constitution of the United States of America including, *inter alia*, plaintiff's Fourth and Fourteenth Amendment right to be free from continued detention after it was or should have been known that plaintiff was entitled to release.

274. (1) that he has a right to be free from continued detention stemming from law enforcement officials' mishandling or suppression of exculpatory evidence, (2) that the actions of the officers violated that right, and (3) that the officers' conduct shocks the conscience." R

275. Plaintiff had a right to be free from continued detention stemming from defendants' suggestive identification procedures; coercion of witnesses; suppression of evidence; illegal seizure of evidence; mishandling, concealing and/or suppressing exculpatory and/or impeaching material described above, and defendants violated that right.

276. That said Constitutional right arises both from plaintiff's Fourth Amendment right to be free of unreasonable searches and seizures and plaintiff's Fourteenth Amendment right to substantive due process.

277. Defendants' conduct in this regard was so egregious and outrageous as to shock the conscience.

278. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages.

279. Defendants are sued in their individual and official capacities.

280. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

ELEVENTH CAUSE OF ACTION

(42 U.S.C. § 1983 based on Failure to Intervene against all Defendants)

281. Plaintiff repeats and reiterates each and every allegation contained in

paragraphs numbered “1” through “280” above as if fully set forth herein.

282. Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which plaintiff was subjected despite the fact that they had opportunities to do so.

283. The individual defendants, and each of them, thereby displayed deliberate indifference to plaintiff's rights, including but not limited to plaintiff's right to be free from unreasonable and unlawful searches and seizures, right to procedural and substantive due process, and right to a fair trial.

284. That by virtue of the aforementioned acts by defendants, plaintiff was deprived of his civil rights guaranteed under the Constitution of the United States, including his right under the Fourth and Fourteenth Amendments to the United States Constitution, and defendants therefore are liable to plaintiff for damages under 42 USC § 1983.

285. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages.

286. Defendants are sued in their individual and official capacities.

287. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

EIGHTH CAUSE OF ACTION
(42 U.S.C. § 1983 based on Denial of Procedural and Substantive
Due Process against all Defendants)

288. Plaintiff repeats and reiterates each and every allegation contained in

paragraphs numbered “1” through “287” above as if fully set forth herein.

289. By their conduct and actions in falsely arresting and imprisoning plaintiff and maliciously prosecuting him, defendants violated plaintiff’s rights to equal protection, a fair trial and both substantive and procedural due process of plaintiff as well as the protections afforded under the Fourth and Fourteenth Amendments.

290. Defendant, PIERRE, deprived plaintiff of his due process rights under the Fourteenth Amendment to the United States Constitution based by failing to inform the District Attorney’s Office about the fact that evidence was allegedly recovered from plaintiff’s bedroom without a warrant and without consent.

291. Defendant, MARA, deprived plaintiff of his due process rights under the Fourteenth Amendment to the United States Constitution based by failing to inform the District Attorney’s Office about the fact that evidence was allegedly recovered from plaintiff’s bedroom without a warrant and without consent.

292. Defendant, ROBERTS, deprived plaintiff of his due process rights under the Fourteenth Amendment to the United States Constitution based by failing to inform the District Attorney’s Office about the fact that evidence was allegedly recovered from plaintiff’s bedroom without a warrant and without consent.

293. Defendant, LAVIN, deprived plaintiff of his due process rights under the Fourteenth Amendment to the United States Constitution based by failing to inform the District Attorney’s Office about the fact that evidence was allegedly recovered from plaintiff’s bedroom without a warrant and without consent.

294. Defendant, GAMRAT, deprived plaintiff of his due process rights under the

Fourteenth Amendment to the United States Constitution based by failing to inform the District Attorney's Office about the fact that evidence was allegedly recovered from plaintiff's bedroom without a warrant and without consent.

295. Defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY deprived plaintiff of his due process rights under the Fourteenth Amendment to the United States Constitution by failing to inform the District Attorney's Office about problems encountered in the questioning of the witnesses, as a reasonable jury could conclude that the detective's acts could have prevented the District Attorney's Office from making an informed decision about the reliability of that evidence.

296. That the actions of defendants resulting from plaintiff's arrest, detention, imprisonment and malicious prosecution deprived the plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1983 and 1988.

297. That defendants violated plaintiff civil rights by fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence, failing to properly investigate the circumstances of the crime of which plaintiff was wrongfully accused and in knowingly accusing plaintiff of a crime that defendants knew he had not committed.

298. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, property damages, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

299. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION
Violation of New York State Constitution

300. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “299” above as if fully set forth herein.

301. That by virtue of the aforementioned acts, defendants, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY are liable to plaintiff for violating his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

302. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

303. That defendant, CITY, is also liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of *respondeat superior*.

304. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages

305. Defendants are sued in their individual and official capacities.

306. The amount of damages sought in this action exceeds the jurisdictional limits of

all lower Courts that might otherwise have jurisdiction.

TENTH CAUSE OF ACTION
(Pursuant to 42 U.S.C 1988 against all Defendants)

307. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “306” above as if fully set forth herein.

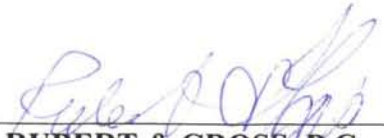
308. That the actions of defendants heretofore described resulting in plaintiff’s detention, imprisonment, assault and battery, use of excessive force and malicious prosecution deprived Plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.

309. That in the event that Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from defendants.

310. By reason of the foregoing, defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff, LEROY PRESSLEY, respectfully demands judgment against defendants, CITY, PIERRE, MARA, ROBERTS, LAVIN, GAMRAT and QUIGLEY and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of attorney's fees pursuant to 42 U.S.C. § 1988, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
July 12, 2016



RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103

BY: 
_____ RICHARD GROSS

VERIFICATION

RICHARD GROSS, an attorney admitted to practice in the Courts of New York, states as follows:

That I am a member of the firm of RUBERT & GROSS, P.C., attorneys for plaintiff, LEROY PRESSLEY, in the within action; I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

That the reason this verification is being made by me and not by the plaintiff is because the plaintiff does not reside in the county within which we maintain our office.

The grounds of my knowledge as to all matters not stated upon my own information and belief are as follows:

Review of records and conversations with plaintiff.

Dated: New York, New York
July 12, 2016



RICHARD GROSS